

		In contrast to Olsen v. Harbison (2010) 191 Cal.App.4th 325, in this case the defendants' statements were made for economic self-interest and were not made to achieve the objects of the litigation or to help obtain a verdict or settlement. (Id. at pp. 335-336.) The Court therefore OVERRULES the demurrer to the fourth cause of action. The Court GRANTS Defendants' request for judicial notice. Plaintiff to give notice.
105	Huntington Beach v. Surf City Partners, 2026-01565130	MOTION FOR COURT-ORDERED SERVICE – GRANTED Plaintiff City of Huntington Beach moves this Court for an order authorizing service of process on Defendant through the California Secretary of State pursuant to Corporations Code section 17701.16(c). The unopposed motion is GRANTED pursuant to Corporations Code §17701.16(c). Service shall be made upon Surf City Partners, LLC by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. Clerk to give notice.
106	Fullerton v. Air Combat USA, 2026-01548989	MOTION FOR LEAVE TO INTERVENE – GRANTED "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: . . . (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that

	person's interest is adequately represented by one or more of the existing parties." (CCP 387(d)(1)(B).) The right to intervention is unconditional "when the person seeking intervention claims an interest relating to the property or transaction that is the subject of the action, the disposition of the action may impair or impede the person's ability to protect that interest, and the interest is not being adequately represented by existing parties. [Citation.]" (Mylan Laboratories Inc. v. Soon-Shiong (1999) 76 Cal.App.4th 71, 77-78.) Here, the property at issue is the approximately \$2.2 million in this interpleader action. (Declaration of Gary S. Casselman ("Casselman Decl."), ¶ 9.) There is no argument that Casselman's application is not timely. The Complaint In Interpleader was filed on February 19, 2026, and Casselman was not identified as a claimant. (Casselman Decl., ¶ 10.) On April 17, 2026, Casselman filed a Notice of Related Case relating the instant case to the Los Angeles Action. (ROA 28.) On May 29, 2026, Casselman filed the original motion for leave to intervene. (ROA 74.) While there is no evidence indicating when Casselman knew or should have known his interests in the litigation were not being adequately represented, the original motion for leave to intervene was filed a little more than three (3) months after the instant Complaint In Interpleader was filed, and the timing appears reasonable. Casselman provides that he became lead trial counsel for Air Combat USA, Inc. ("ACUSA") and Michael J. Blackstone ("Blackstone") immediately before trial at Blackstone's urgent request in the underlying litigation against the City of Fullerton, beginning on or about February 26, 2020; that Casselman performed substantial trial, post-trial, appellate-support, remand, settlement and mediation services for Defendants; that the jury returned a \$1.2 million verdict for ACUSA on September 16, 2020; that the trial court subsequently awarded prevailing party attorney fees, including \$342,720 attributed to Casselman's work through trial at \$700 per hour, which was affirmed on appeal; that no final signed fee agreement was executed between
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	Casselman and ACUSA/Blackstone; and that after the trial and fee motion, Casselman continued to provide services at Blackstone's request or with his knowledge and consent that contributed to the eventual \$2.2 million settlement. (Casselman Decl., ¶¶ 2-6.) Casselman also provides that the OCBA Mandatory Fee Arbitration Committee, which ACUSA and Blackstone petitioned in May 2024, issued an advisory award dated February 10, 2026, awarding Casselman \$429,403.60 in fees and costs against ACUSA and Blackstone, jointly and severally, including \$113,050 for 161.5 hours of post-trial services and \$2,133.60 in unreimbursed costs. (Casselman Decl., ¶ 7.) The foregoing evidence appears sufficient to support the existence of a significantly protectable interest in the interpleaded funds. Defendants assert that Casselman does not have a direct and immediate interest in the interpleaded funds because he does not have a lien or liquidated claim and only has a contingent claim, but cites to no authority which provides that an attorney must have a lien or liquidated claim in order to be able to intervene in an interpleader action determining the right to certain funds. The Court finds that <i>Brown v. Superior Court</i> (2004) 116 Cal.App.4th 320 and <i>Carroll v. Interstate Brands Corp.</i> (2002) 99 Cal.App.4th 1168, cited by Defendants, are inapplicable here as those cases involved an attorney seeking adjudication of an attorney lien in the same action in which the attorney represented the client. Based on the foregoing, Casselman has satisfied the requirements of Code of Civil Procedure section 387(d)(1)(B), and has set forth the grounds upon which the intervention rests. Casselman has also concurrently filed a copy of the proposed complaint in intervention with the amended notice of motion and motion. (ROA 122.) The Court GRANTS Casselman's motion for leave to intervene and orders Casselman to separately file the Complaint-In-Intervention within 10 days, and serve the same in accordance with Code of Civil Procedure section 387.
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		Casselman may file a Notice of Related Case after the filing of the Complaint-In-Intervention. Casselman to give notice.
107	Cloutier v. Khedraki, 2025-01503041	MOTION TO APPROVE SETTLEMENT – GRANTED Defendants Ousama Khedraki (erroneously sued as Sam Khedraki and Dima Khedraki (together, “Defendants”) move for an order approving the settlement reached between the parties. An enforceable settlement of an action involving a person lacking the capacity to make decisions can only be consummated with court approval. (Code Civ. Proc., § 372(a)(3) [guardian ad litem appearing for person who lacks legal capacity to make decisions may, with approval of the court, compromise the same].) A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with rules 7.950, 7.950.5, 7.951, and 7.952. A petition for court approval of a compromise or settlement of a pending action to which a person with a disability is a party must be verified by the petitioner and, except as provided in rule 7.950.5 (which is not applicable here), submitted on form MC-350. (Cal. Rules of Court, rule 7.950.) Because Defendants’ Motion was not initially verified or on the required form, the hearing on Defendants’ Motion was continued from 8/24/26 to 9/28/26. On 8/25/26, Defendants served form MC-350 and submitted it for filing but the filing was rejected and Defendants were directed by the Clerk to file the form in the Probate Department. Code of Civil Procedure section 372(a)(3) provides in relevant part: “The guardian or conservator of the estate or guardian ad litem so appearing for any minor, person who lacks legal capacity to make decisions, or person for whom a conservator has been appointed shall have power, with the approval of the court in which the action or proceeding is pending, to compromise the same, to